

Sunita v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 February 2025 · 2025:AHC:24962-DB · Writ - C No. 1855 of 2025 · **Writ disposed of; petitioner relegated to Clause 6.14 instalments; coercive action stayed two months.**

HEADNOTE

A widow consumer challenging a post-disconnection demand and surcharge was not granted certiorari. The Court left section 56(2) and surcharge waiver undecided and directed that if she applied within two weeks under Clause 6.14 of the U.P. Electricity Supply Code, 2005, the authority would consider fixing instalments within a month. Coercive action stayed for two months.

FACTUAL SUMMARY

Sunita, a widow, had her electricity disconnected on 23 February 2021. On 15 December 2024 the licensee issued a demand notice for Rs.1,65,932.78. She sought certiorari to quash that demand and mandamus to consider her representation of 21 December 2024. Invoking section 56(2) of the Electricity Act, 2003, she argued that charges not billed for two years could not be recovered, and that surcharge should not be levied on a poor widow. Departmental instructions quantified arrears at Rs.56,664 plus surcharge for delayed payment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for arrears

HOLDING

A consumer who wishes to pay electricity arrears in instalments may apply under Clause 6.14 of the U.P. Electricity Supply Code, 2005. If the application is made within two weeks, the relevant authority is to consider fixing instalments within the next one month. Coercive action stayed for two months. The writ was disposed of on that footing. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SECTION 56(2) OF THE ELECTRICITY ACT, 2003 BARRED RECOVERY OF THE DEMAND AS CHARGES NOT BILLED FOR TWO YEARS

Raised at the first hearing; the final order did not decide the limitation plea and instead pointed the petitioner to Clause 6.14. ¶ 2

NOT DECIDED — WHETHER SURCHARGE ON ARREARS SHOULD BE WAIVED BECAUSE THE PETITIONER IS A POOR WIDOW

Argued at the first hearing; not decided. ¶ 2